

CRIMINAL LAW

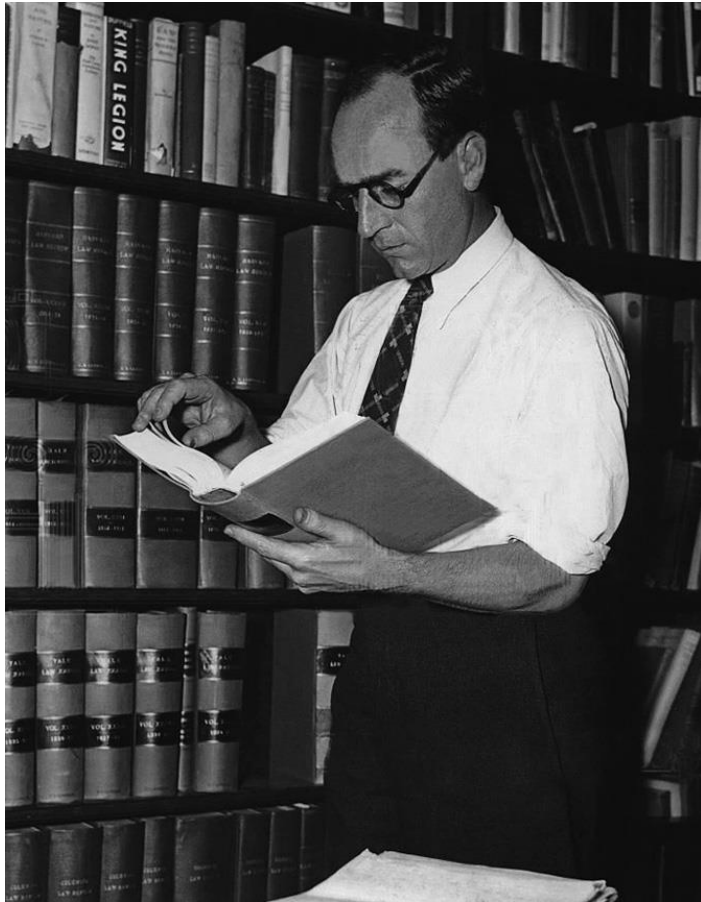
Tuesday, September 1
(Lecture 1)

*Welcome! This slide
will help you prepare
for today's class.*

- We will begin by reviewing the Course Outline. Please be prepared to ask any questions you might have about course logistics.
- Next, we will discuss what this course covers, including in relation to other law school courses.
- Finally, we will turn to our first three weekly objectives, which we will discuss in relation to today's readings. Please be prepared to discuss the Napoleon & Friedland text, the Ouimet Report, and the Standing Senate Committee report.

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(Lecture 1)**



“Compassion without technique is a mess.

But technique without compassion is a menace.”

- Karl Llewellyn (1893-1962)

**“As you enter
positions of trust and
power, dream a little
before you think.”**

- Toni Morrison
(1931-2019)



The Castle (1997)



The Criminal Justice System

Evidence

Criminal Procedure

Criminal Law

Sentencing

Etc. (etc., etc.!).



A Criminal Case (1/3)

- What happened? What are the facts?
- What are the legal implications of the facts? What result in law should follow from the facts?

Identify the criminal law issues that arise in the context of a given set of facts, apply the law to those facts, and make arguments about criminal law issues in a lawyerly style.

Substantive Rules

- **Substantive Rules** govern the rights and obligations we have vis-à-vis one another, and vis-à-vis society
- **Examples include:**
 - Laws about the conduct of parties to a contract
 - Laws about how to label pharmaceuticals
 - Laws requiring drivers to stop at red lights
 - Laws prohibiting murder and theft
- Often directed at everyone in society



Procedural Rules

- **Procedural Rules** dictate how officials should proceed when enforcing substantive rules
- **Examples include:**
 - Rules governing when police may stop a car
 - Rules about the composition of a jury
- Primarily directed to those involved in administering the substantive law (e.g. police, judges, lawyers)



Objectives for Week 1

1. **Begin to think critically about the purpose(s) of the criminal justice system in relation to the scope of criminalization.**
2. **Explain the principle of restraint as it relates to the scope of criminalization.**
3. **Start to think about three key themes of the course:**
 - **Blameworthiness – Responsibility – Fault**
 - **Individual & Collective Rights, Interests, Burdens**
 - **Discretion vs. Rule of Law**

Napoleon & Friedland (1/3)

“...the *wetiko* legal concept or category grappled with the ‘ordinariness of human monstrosity.’”

Napoleon & Friedland (2/3)

“The fundamental ability of any society to deal with the **universal issue of human violence and vulnerability** is central to its maintenance of peace, order, stability, civility, and overall political governance.

All societies experience the universality of the human condition, complete with the corresponding messiness, pain and joy that are generated when human beings live together.

Each society has unique collective responses to these universal issues that are expressed through its legal traditions.”

Napoleon & Friedland (3/3)

“Like analogous criminal law concepts, the wetiko legal concept or category grappled with the ‘ordinariness of human monstrosity.’ It triggered particular obligations, legitimate collective reasoning processes and legal principles for determining an appropriate response to human violence and harm in particular circumstances.

These principles were balanced and implemented differently based on specific facts in each circumstance, but **the overriding goals were preventing harm, protecting the vulnerable and ensuring group safety.**”

Ouimet Report – the Purposes of Criminal Justice

“The basic purpose of criminal justice is to protect all members of society, including the offender himself, from seriously **harmful and dangerous conduct**. ...

‘The aim of crime prevention in a free society is part of the **larger aim of producing a society in which the citizen can fulfill himself in the pursuit of his individual happiness**, free from want, disease, and external interference.’” (Quoting Professor Fitzgerald)



Ouimet Report – the Principle of Restraint

Ouimet Report: Three Criteria for Criminalization

1. **Conduct is substantially damaging to society;**
2. **Conduct cannot be adequately controlled by other social forces; and**
3. **“No law should give rise to social or personal damage greater than it was designated to prevent”**



Learning Objectives/ Weekly Objectives

6. Identify and critically evaluate some of the normative and policy commitments that animate Canadian criminal law

2. Explain the principle of restraint as it relates to the scope of criminalization.

Senate Standing Committee – the Principle of Restraint

“One alternative is to find ways to address social problems and anti-social behaviour by means other than criminal laws. There are many **regulatory offences in Canada passed by provincial, territorial and federal governments that are dealt with by other procedures than those involving criminal court.”**

Senate Standing Committee, *Delaying Justice is Denying Justice: An Urgent Need to Address Lengthy Court Delays in Canada*

Criminal Offices vs. Regulatory Offences

Regulatory Offence

Quasi-Criminal Offence



Criminal Offence

True Crime



Criminal Offences vs. Regulatory Offences

“It’s revealing that in defining a regulatory offence, the case authorities do so by comparing and contrasting it with a crime. This approach discloses an important truism; that the two different types of enforcement mechanisms are intertwined and each type of mechanism can only be explained by understanding the precepts of the other. [...] [R]egulatory offences tend to be directed toward legitimate activities, not conduct that is “**inherently wrongful**” [...] For regulatory offences, the emphasis is on the ability to control legitimate activities that require special care and the creation of standards of behaviour.”

L. Silver, “Regulating COVID-19 From the Criminal Law Perspective”
(ABlawg.ca, April 29, 2020)

Criminal Offences - *Arcand*

“[T]he criminal law, by affirming and reinforcing collective values, protects not only individuals but society as a whole. The underlying premise of Canada’s criminal law, that crimes are wrongs to both individuals and the community, is both venerable and ancient” (*R v Arcand* at para. 32)

R. v. ...



Senate Standing Committee – the Purposes of Criminal Justice

“I think that when starting your review, you must look at and consider whether the criminal justice system is really structured to handle much of what it receives. It receives the addicted, the homeless, the poverty stricken and the mentally ill, but the criminal justice system was not meant to really deal with those sorts of issues, and more and more they are taking up time.”

Senate Standing Committee, *Delaying Justice is Denying Justice*,
(quoting the Honourable P.J. LeSage,
former Chief Justice of the Ontario Superior Court of Justice)

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Three Key Themes

- **Blameworthiness – Responsibility – Fault**
- **Individual & Collective Rights, Interests, and Burdens**
- **Discretion vs. Rule of Law**

Discretion

“To implement the Committee’s proposition that the criminal law should be enforced with a minimum of harm to the offender, discretion should be exercised in cases involving individuals who are technically guilty of an offence but where no useful purpose would be served by the laying of a charge. Where a charge is laid, discretion should be exercised as to the manner in which the law is applied.”

(Ouimet Report)

The Rule of Law

“Unfettered discretion invites arbitrary decision-making.”

(Arcand at para. 21).

The Rule of Law (continued)

- *A loose and contested concept...*
- **People are ruled by the law, not by people**
- **Laws are consistent: no-one is above the law; everyone is equal under the law**
- **Laws are known, transparent: no secret or retroactive laws**

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